

ADV. PRONoy KAMAT

OFFICE: AF 2, First Floor,
CASA IMMACULADA BUILDING,
Near Progress High School
Jose Falcao Road, Panaji-Goa.
PH: 2235975 MBL: 9422386975

Date: - 27/11/2020

To,
Pascoal Trinidad
R/o Palbrika Mansion,
Near Our Lady of Rosary High School,
Dona-Paula Tiswadi, Goa

Sub: Your letter dated 20 /11/2020 for settlement of Special Civil Case No. 52/2013 submitted to Comunidade of Bambolim.

Sir,

With reference to above letter this is to inform you that the said letter was discussed by the managing committee of Comunidade of Bambolim in the presence of prominent Gaokars on 21/11/2020. However the Escrivav/Secretary of Comunidade of Bambolim from the office of the Administrator of Comunidade was not present and the minutes could not be recorded as per Code of Comunidade.

The Managing Committee and the Gaokars who were present after discussion need following clarifications from you:-

- a. That Comunidade wants 5000 Sq.mts land under survey no. 93/2 of Village Bambolim which is towards the village side and this area should be touching existing road. However as per court records the said area under survey No. 93/2 is sold to M/s Loonkar Developers who is also party in the suit and it was kept under mortgage to the bank by M/s Loonkar Developers. Therefore the managing committee of Comunidade of Bambolim wants to know how Mr. Pascoal Trinidad will be able to give it and the said encumbrance need to be cleared with the involvement of M/s Loonkar Developers before signing the consent terms and hence clarification on this point is required by the Comunidade.
- b. In case above issue is clarified then Proper plan of the plot of 5000 Sq.mts land under survey no. 93/2 with location, dimensions as well as demarcation with size of structures with specifications agreed to be constructed by you are required to be given by you to the Comunidade in order to place the same before the general body of the Comunidade to take the final decision which has to be called by with the approval of the Administrator of Comunidade.
- c. The letter dated 20/11/2020 is signed by you and it does not have signature of Mrs. Albertina Trinidad. Hence this needs to be clarified.

d. The settlement shall be only in respect of survey No. 93/2, 3 and 4 of village Bambolim and the Comunidade will proceed with survey No. 89/3 and 90/1 unless it is settled by the parties involved in Special Civil Case 4/2014/A and other cases.

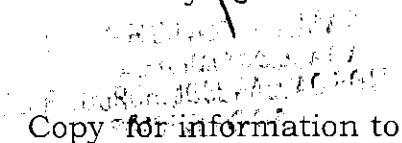
e. The draft terms of settlement/consent terms need to be drawn in consultation with advocate for the Comunidade for placing before the General body for approval and any modifications if suggested by the General body then the same should be included and then further procedure for obtaining approval from the Administrative tribunal will have to be initiated.

f. You may file application for modification of earlier order under which direction was given for disposal of SCS 52/2013/A by Hon'ble High Court for which Comunidade will give consents since finalization of consent terms and approval from Administrative Tribunal will take considerable time and the court is insisting on day to day hearing.

g. The meeting managing committee of Comunidade of Bambolim is scheduled to meet on Sunday, 6/12/2020 and you are requested to clarify on above before above date which the managing Committee will discuss for further action.

Yours faithfully 

Adv. Pronoy Kamat


Copy for information to

Comunidade of Bambolim

UMESH RAO &
associates
a d v o c a t e s

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Umesh Rao
Raunaq Rao
Sayuli Pai Raikar

Wednesday, 2 December 2020

To,

Pronoy Kamat, Advocate,
AF – 2, First Floor, Casa Immaculada,
Near Progress High School,
Jose Falcao Raod,
Panaji, Goa – 403 001.

REPLY TO LETTER

DATED 27.11.2020

Dear colleague,

This has reference to the Letter communication received from you by my client, Mr. Pasocal Trindade in furtherance of the Letter dated 20.11.2020 issued by him proposing a settlement of litigation pending before various *fora* in respect of the properties bearing Survey Nos. 93/2, 93/3 and 93/4, Bambolim, Goa. I am instructed to address you as under:–

1. At the outset, my client fervently requests you to henceforth ensure that any all discussions held on this subject, be minuted by the Escrivão in order to rule out any misunderstandings or misinterpretations, given the chequered history of this litigation.
2. With regards to the clarifications sought by the Managing Committee of the Comunidade, my client wishes to offer the following para-wise responses:–

With reference to Para *in seriatim*

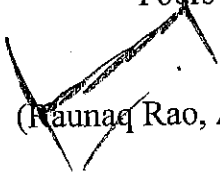
- a. My client is agreeable to allocate the agreed 5000 sq. mts., in Survey No. 93/2 and in such manner that it is abutting an existing road. As per the enquiries conducted by my client with M/s. Loonkar Developers, there are no subsisting encumbrances in respect of the land held by them. M/s. Loonkar Developers has also agreed to release the land held by them, if required, to accommodate the 5000 sq. mts. to be allocated to the Comunidade.
- b. My client is agreeable to allocate an unencumbered area of 5000 sq. mts. in Survey No. 93/2 which has been consented to by M/s. Loonkar Developers. A plan demarcating the said area is under preparation by my clients' architect and shall be made available to the Comunidade in due course.
- c. My client states that Mrs. Albertina Trindade is in full and complete knowledge of the ongoing effort for settlement. My client states that in terms of the Portuguese Civil Code applicable to Goans, he is the administrator of his wife's estate. In any event of the matter, Mrs. Albertina Trindade will sign the Consent Terms for the satisfaction of the Comunidade.
- d. My client states that the proposal extended by him is limited to the properties held by him i.e., Survey Nos. 93/2, 93/3 and 93/4, Bambolim, Goa. These properties are subject-matter of various litigations. My client is willing to share a list of the various cases and counter-cases that exist inter se my client and the Comunidade, including but not limited to



CS/66/2009 filed by Mr. Benevelo Boaventura D'Souza and others. All these cases will be required to be mentioned in the Consent Terms and unconditionally withdrawn after execution thereof.

- e. My client is aware that the Consent Terms would have to be pre-approved by the General Body as well as the Administrative Tribunal. My client request you to inform him of the date of the meeting of the General Body so as to enable him to share the proposed Consent Terms.
- f. My client states that appropriate proceedings will be taken out by him before the Hon'ble High Court of Bombay at Goa in order to seek modification of the directions for early disposal.
- g. Stands answered in view of the foregoing.

Yours sincerely,


(Naunag Rao, Advocate)

CC.:—

Comunidade of Bambolim